

		the petition may not be heard until at least 30 days after the date of such service. “(c) If the arbitration agreement does not provide the manner in which such service shall be made and the person on whom service is to be made has previously appeared in the proceeding or has previously been served in accordance with subdivision (b) of this section, service shall be made in the manner provided in Chapter 5 (commencing with Section 1010) of Title 14 of Part 2 of this code.’ “California Rules of Court, rule 3.1300(c) requires a proof of service to be filed at least five court days prior to the hearing. “Here, no proof of service has been filed showing the petition and notice of hearing have been served on Respondents. Accordingly, the hearing is CONTINUED as set forth above for Petitioner to properly and timely serve the petition, notice of hearing, and any other necessary documents.” Since the March 26, 2026 hearing, Petitioner has not filed any notice of ruling, notice of hearing, or proof of service showing Respondent has received any documents filed in this case or received any notice of this hearing. Petitioner also has not filed anything demonstrating any efforts have been made to located and serve Respondents. Based on the failure to properly serve Respondents and provide notice of this hearing despite being given the opportunity to do so, the petition is DENIED WITHOUT PREJUDICE. Petitioner’s counsel is ordered to give notice of this ruling.
8.	<i>Azizi vs. Mobilitas Insurance Company</i> <i>2026-01556670</i>	Before the court is the motion of respondent Mobilitas Insurance Company (Mobilitas) to stay arbitration. As more fully set forth below, the motion is DENIED WITHOUT PREJUDICE. Initially, the court notes Mobilitas identifies itself as the respondent in this case even though it is the party who initiated these proceedings. As the party who filed the petition to open this case, Mobilitas should be identified as the petitioner in these proceedings, even though it is the one against whom relief may ultimately be sought in any arbitration. By this motion, Mobilitas seeks an order to stay arbitration proceedings pending resolution of occupational accident

		insurance claim of “petitioner” Mirwais Azizi (Azizi). The stay is to prevent Azizi from proceeding with any arbitration until the other claim is resolved. Mobilitas, however, has failed to properly serve Azizi so as to concur jurisdiction with the court over Azizi. The only proof of service Mobilitas has served states the motion was served on an attorney who allegedly represents Azizi. There is nothing to show the law office represents Azizi. More importantly, there is nothing to show this law office has authority to accept service on Azizi’s behalf or that Azizi agreed to accept electronic service of the petition. Personal service of the case initiating document, and potentially as summons, generally is required for the court to acquire jurisdiction over a responding party. Mobilitas has failed to provide any evidence or authority to show this court has authority over Azizi so as to make any orders affecting Azizi’s rights. Moreover, Mobilitas has failed to present any evidence to show there is any pending arbitration for the court to stay. A demand for arbitration does not necessarily equate to a pending arbitration. All the court has is the conclusory statement by Mobilitas’s counsel that “Azizi demanded formal arbitration.” That is not sufficient. Based on the foregoing, the motion is DENIED WITHOUT PREJUDICE. Mobilitas’s counsel is ordered to give notice of this ruling.
9.	Key vs. Delgado 2023-01316546	Before the court is the motion by plaintiff Carol Key (Plaintiff) for an award of attorney fees and costs in the amount of \$71,807.81. As more fully set forth below, the motion is DENIED. This case arises from an allegedly fraudulent deed being recorded in 2011 that gave defendant Dunia Delgado (Defendant) a five percent interest in Plaintiff’s San Clemente property. On November 20, 2025, the court entered a judgment after a court trial in favor of Plaintiff and against Defendant. Pursuant to the judgment, Plaintiff prevailed on the first cause of action for cancellation of written instrument and the third cause of action for quiet title. (ROA 219.) Plaintiff did not prevail on the second cause of action for slander of title or the fourth cause of action for violation of California Penal Code section 496. On a motion for attorney fees, the moving party has the burden to (1) establish entitlement to an award, and (2) document the appropriate hours expended and hourly rates. (<i>ComputerXpress, Inc. v. Jackson</i> (2001) 93 Cal.App.4th 993, 1020.) Attorney fees generally are not